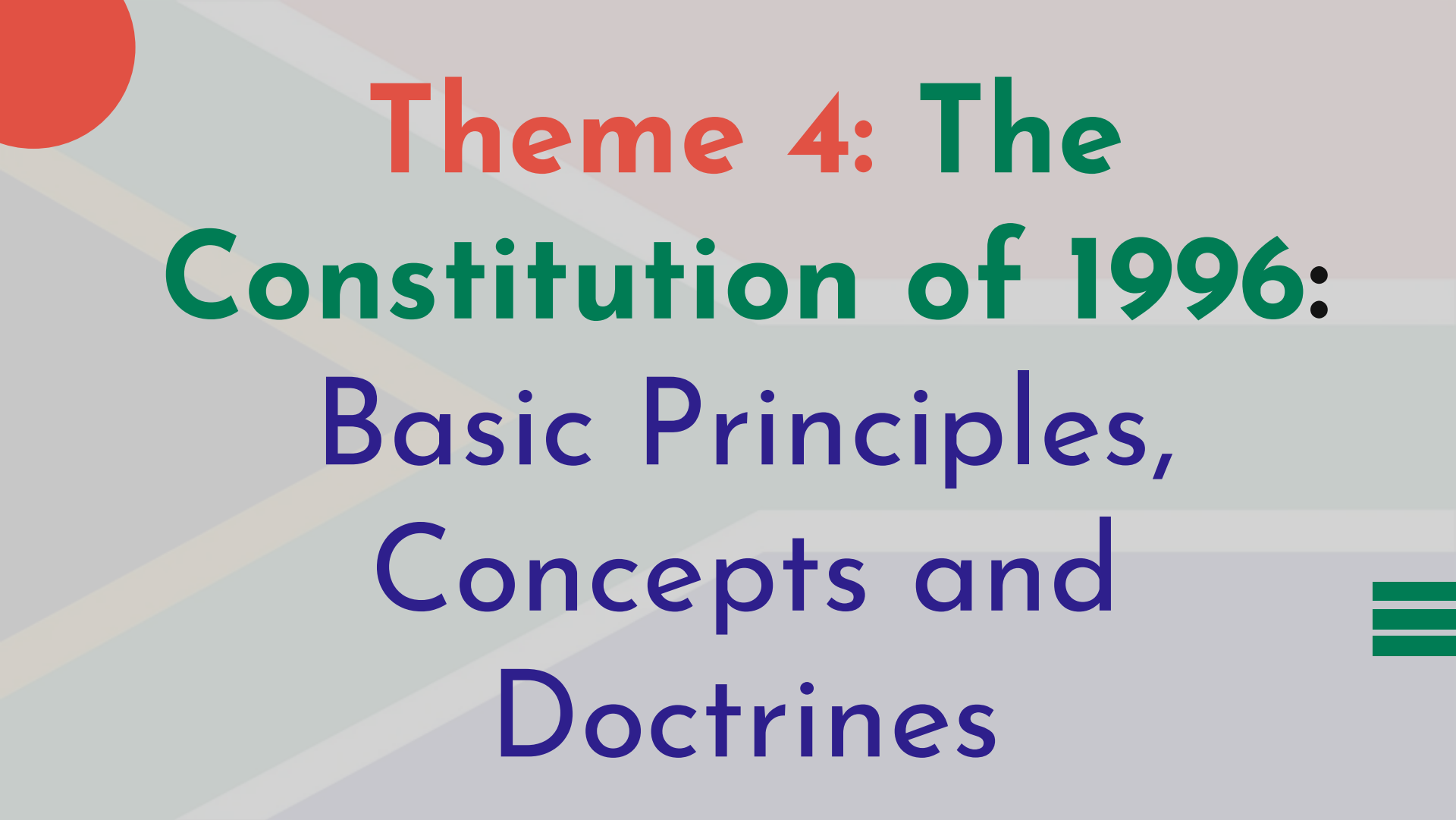




Theme 4: The Constitution of 1996: Basic Principles, Concepts and Doctrines





Recap

Understanding the 1996 Constitution

- To understand the 1996 Constitution, you need to:
 - 1) Understand the context in which it originates and operates
 - 2) Understand the fundamental doctrines, concepts and principles the constitution contains

Constitutionalism (de Vos 2.2)

- The theory of constitutional law
- Philosophy and doctrine that the governmental authority is derived from, and limited by a body of (written) fundamental law (ie a constitution)
- Ensures that rulers act according to binding boundaries and not their own desires

Constitutionalism (de Vos 2.2)

- In essence, constitutionalism is the notion that a constitution must both **STRUCTURE and CONSTRAIN** state power
 - A constitution must establish the institutions and structures of government and allocate power to them for effective governing, **AND**
 - It must limit and disperse that power among the institutions and structures in an attempt to ensure that power will not be abused

Constitutional Supremacy

- Constitutional supremacy renders the constitution judicable
 - Any law or conduct **can be tested against** the provisions of the constitution and must be declared **unconstitutional and invalid** if they fail to comply with these provisions
 - Given justiciability of Constitution – an important aspect of constitutional supremacy **is judicial review**
 - Judicial review enjoins court to declare any law/ conduct inconstant with the Constitution invalid.

Defining Transformative Constitutionalism:

- No single fixed definition of Transformative Constitutionalism
- Most famous is from Prof Kare Klare:

Transformative constitutionalism:

- “Long-term project of constitutional **enactment, interpretation and enforcement** committed (not in isolation, but in the historical context of conducive political developments) **to transforming** [South Africa’s] **political and social institutions** and power relationship in a democratic, participatory, and egalitarian direction” (Kleyn et al page 52).

Transformative Constitutionalism

- ***Soobramoney v Minister of Health 1997 (CC) para 8:*** "We live in a society in which there are great disparities in wealth. Millions of people are living in deplorable conditions and in great poverty. There is a high level of unemployment, inadequate social security, and many do not have access to clean water or to adequate health services. *These conditions already existed when the Constitution was adopted* and a commitment to address them, and *to transform our society* into one in which there will be human dignity, freedom and equality, lies at the heart of our new constitutional order."
- **Highlights that it is both backwards and forward looking**

Transformative Constitutionalism: Criticism

- It is often praised for its ambitious goals, particularly in post-apartheid South Africa
- **BUT that does not mean it does not face several significant criticisms**

Criticism: Persistent Inequality and Slow Pace of Change

- The promised large scale social and economic transformation **remains unfulfilled** despite a transformative legal framework
- Critics point to the **persistent racialised poverty and inequality** as evidence that the project has failed to meet popular expectations
- Critics claim that transformative constitutionalism cannot solve deeply structural problems, such as land reform

Criticism: Transformative Constitutionalism is too Court Centric

- Critics argue that the project relies **too heavily on the role of the judiciary** to achieve social change
- There is a burden of expectation placed on courts that courts cannot be met through adjudicative means alone
- Krieger's original concept of TC is seen as overly focused on the role of lawyers and judges
- **Counter-majoritarian Concerns:** the focus on judicial intervention as the main driver for change can be seen as a counter-majoritarian manifestation that prevents more direct, political paths to social justice

Criticism: Transformative Constitutionalism is too Court Centric

Counter-Majoritarian Dilemma Continued:

- the CMD is a legal and political concept describing the tension between democratic majority rule and judicial review where unelected judges invalidate laws created by elected representatives
- It questions why an unelected judiciary can override the will of the majority,
- **Example:** The constitutional Court overturning parliamentary actions to align with the supreme constitution

Criticism: Transformative Constitutionalism is too Court Centric

- IE Transformative constitutionalism, as the main theory to effect change, **is a court-driven process**
- ‘Therefore, is it my contention that within the context of South Africa’s prevailing conservative legal culture, the extent to which the success of transformative constitutionalism as an enterprise depends on legal and judicial interpretation leaves the project in danger of remaining and incomplete project at best.’ **S Sibanda ‘Not Purpose Made ...’ 2011**

Criticism:

S Sibanda *“Not yet Uhuru”* Phd thesis Wits (2018) 224-225.

- Transformative constitutionalism has “not translated into much more than rights or law-based approaches to driving change **with little evidence of other work within the discourse directed at inculcating social, economic or cultural institutional or structural power shifts or innovations beyond the courts**” ... transformative constitutionalism, as it has become to be understood (as a strictly legal concept given meaning to by primarily the courts, to the exclusion of other political actors) is not able to solve complex questions such as those raised during the #Feesmustfall protests; questions as to who is included in determining and shaping a transformed society. -

Criticism: The Liberal Compromise

- A radical criticism is that the South African constitutional arrangement represents an **unacceptable compromise** that **preserves the apartheid era socio-economic order** rather than achieving a true radical break
- **Deconial critique:** Some argue that transformative constitutionalism is a misfit for the quest to decolonise, as it may still be rooted in Western legal traditions and colonial pedagogies

Criticism: “Fetishism of the Law”

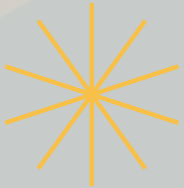
- Some critics point to “**constitutional fetishism**” or “**constitutional worship**”
- Some critics see the way we interact with the constitution in a similar way to a religion, with its own “theology” (foundational values), “priests” (judges), and “pieties” (legal protocols).
- Some argue that such “worship” can lead to form “anti-intellectualism, where the constitution is treated as the “exclusive horizon” for all social and political change, silencing any alternative radical or political ideas



Task: Transformative Constitutionalism

Scenario: A group of residents in an informal settlement have been living without access to adequate housing, water, or sanitation for years.

They approach the courts, arguing that the government has failed to realise their socio-economic rights under the constitution



Task: Discuss in Small Groups

- 1) How could the doctrine of transformative constitutionalism support the residents' claim
- 2) What role does the court play in this situation
- 3) What are some of the criticisms of using the Constitution in this way
 - Are the courts overstepping into government decisions
 - Is the transformation happening too slowly?
 - Does law alone solve structural inequality
- 4) Do you think South Africa is being transformed by the constitution, or is transformation more aspirational???